

Chapter 30 Commercial

30.5 Regulations Applying to the Commercial Zone Category

30.5.1 General

30.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 30.5 apply to all lands, uses, **buildings** and **structures** in the Commercial Zone category.

(2) Interpretation of the Commercial Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Commercial Zone category consists of the letters CL, indicating the primary land use permitted in the respective zone.

(3) Interpretation of the Zone Label

In the Commercial Zone category, the numerical value following the zone symbol in the zone label on the Zoning By-law Map indicates the permitted maximum floor space index of all land uses on a **lot**.

30.5.20 Permitted Uses

30.5.20.1 General

(1) Lawfully Existing Public School, Private School

A **lawfully existing public school or private school** on a **lot** in the Commercial Zone category is permitted on that **lot**, and:

- (A) any expansion or addition to the **lawfully existing public school or private school building** must comply with Section 150.48 and the requirements for the zone in which the **lot** is located; and
- (B) the **lawfully existing public school or private school** may be replaced with a new school **building** that complies with Section 150.48 and the requirements for the zone in which the **lot** is located.

(2) Lawfully Existing Place of Worship

A **lawfully existing place of worship** on a **lot** in the Commercial Zone category is permitted on that **lot**, and:

- (A) any expansion or addition to the **lawfully existing place of worship building** must comply with Section 150.50 and the requirements for the zone in which the **lot** is located; and
- (B) the **lawfully existing place of worship** may be replaced with a new **place of worship building** that complies with Section 150.50 and the requirements for the zone in which the **lot** is located.

30.5.40 Principal Building Requirements

30.5.40.1 General

(1) Building Requirements

Additional **building** requirements are in each zone in the Commercial Zone category.

30.5.40.10 Height

(1) Determining the Height of Buildings in Commercial Zones

In the Commercial Zone category, the height of a **building** is the distance between the average elevation of the ground along the **front lot line** and the elevation of the highest point of the **building**, or in the case of a

corner lot the average elevation of the ground along all **lot lines** that abut a **street** and the elevation of the highest point of the **building**.

(2) Determining the Height of Structures in Commercial Zones

In the Commercial Zone category, the height of a **structure**, that is not a **building**, is the distance between **average grade** and the elevation of the highest point of that **structure**.

(3) Height of Specific Structures on a Building

In the Commercial Zone category, the following **structures** on the roof of a **building**, may exceed the permitted maximum height for that **building** by 5.0 metres:

- (A) antennae;
- (B) flagpoles; and
- (C) satellite dishes.

(4) Height of Elements for Functional Operation of a Building

In the Commercial Zone category, the following equipment and **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres:

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **building** that are used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the equipment and **structures** listed in regulations (A) and (B) above.

(5) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Commercial Zone category, equipment, **structures** or parts of a **building** that exceed the permitted maximum height for that **building** in regulation 30.5.40.10(4), must comply with the following:

- (A) the total area of equipment, **structures**, and parts of a **building** may cover is no more than 30% of the area of the roof, measured horizontally; and [By-law: 451-2022]
- (B) the total horizontal dimension of all equipment, **structures**, and parts of a **building** located within 6.0 metres of a **lot line** abutting a **street**, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(6) Height of Rooftop Amenity Space Safety and Wind Protection

In the Commercial Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

(7) Height of Buildings and Structures - Green Roof

In the Commercial Zone category, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

30.5.40.40 Floor Area

(1) Gross Floor Area Calculations for a Non-residential Building in a Commercial Zone Category

In the Commercial Zone category the **gross floor area** of a **non-residential building** is reduced by the area in the **building** used for:

- (A) required parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]

- (E) elevator shafts;
- (F) mechanical penthouse; and
- (G) exit stairwells in the **building**.

(2) Floor Space Index Calculation for a Non-residential Building in a Commercial Zone Category

In the Commercial Zone category the floor space index for a **non-residential building** is the result of the **gross floor area** minus the areas listed in regulation 30.5.40.40(1) divided by the area of the **lot**.

30.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Commercial Zone category, if the **lawful gross floor area of lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index resulting from those **lawfully existing buildings** is the maximum floor space index for those **lawfully existing buildings** on that **lot**.

30.5.40.60 Permitted Encroachments

(1) Canopies and Awnings

In the Commercial Zone category, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** that abuts a **street**, if no part of the canopy, awning or similar **structure** is more than 5.0 metres above the elevation of the ground directly below it.

30.5.40.70 Setbacks

(1) Building or Structure to be Set Back from a Lane

A **building** or **structure** in the Commercial Zone category may be:

- (A) no closer than 3.0 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is not in the Residential Zone category or Open Space Zone category; and
- (B) no closer than 3.5 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is in the Residential Zone category or Open Space Zone category.

30.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Building from a Lane

In the Commercial Zone category, if the **lawful** distance of a **lawfully existing building** or **structure** from the original centreline of a **lane** is less than the minimum distance from the original centreline of the **lane** required by this By-law, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building** or **structure**.

(2) Additions Above Lawfully Existing Buildings in Relation to a Lane

The minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building** or **structure** referred to in regulation 30.5.40.71(1) is the minimum distance from the original centreline of the **lane** permitted by regulation 30.5.40.71(1).

30.5.75 Energy Regulations

30.5.75.1 General

(1) Renewable Energy and Cogeneration Energy Device - Location Restriction

In the Commercial Zone category, a device producing **renewable energy** or **cogeneration energy** on a **lot** may not be located in a **front yard** or a **side yard** that abuts a **street**.

(2) Renewable Energy Device - Height Requirements

In the Commercial Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

(A) on a **building**:

- (i) must comply with the required minimum **building setback**; and
- (ii) no part of the device may be higher than 2.0 metres above the permitted maximum height for the **building**; and

(B) ground mounted, must comply with the requirements for a **building** or **structure** on the **lot**.

(3) Wind Energy Device - Setbacks

In the Commercial Zone category, a **wind energy** device must comply with the required minimum **building setbacks** for a **building** on the **lot**.

(4) Wind Energy Device - Height

In the Commercial Zone category, no part of a **wind energy** device may be higher than 3.0 metres above the permitted maximum height for a **building** on the **lot**.

(5) Geo-Energy Requirements

In the Commercial Zone category, any above-ground part of a **geo-energy** device must comply with the requirements for a **building** or **structure** on the **lot**.

(6) Cogeneration Energy Device

In the Commercial Zone category, a **cogeneration energy** device must be located inside a permitted **building**.

30.5.80 Parking

30.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Commercial Zone category must be available for the use for which it is required.

30.5.80.10 Location

(1) Location of Required Parking Spaces

A **parking space** must be located on the same **lot** as the use for which the **parking space** is required.

30.20 Commercial Local Zone (CL)

30.20.1 General

30.20.1.10 Interpretation

(1) Application of This Section

The regulations in Section 30.20 apply to all lands, uses, **buildings** and **structures** in the CL zone.

(2) Medical Office

In the CL Zone, a medical office includes a medical clinic.

30.20.20 Permitted Uses

30.20.20.10 Permitted Use

(1) Use - CL Zone

In the CL zone, the following uses are permitted:

Ambulance Depot
Community Centre
Education Use
Financial Institution
Fire Hall
Library
Massage Therapy
Medical Office
Municipal Shelter
Office
Park
Personal Service Shop
Pet Services
Police Station
Retail Service
Service Shop
Veterinary Hospital
Wellness Centre [By-law: 545-2019]

30.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - CL Zone

In the CL zone, the following uses are permitted if they comply with the specific conditions associated with the reference number(s) for each use in Clause 30.20.20.100:

Automated Banking Machine (14)
Cogeneration Energy (17)
Day Nursery (7)
Eating Establishment (2, 10)
Outdoor Patio (20)
Outdoor Sales or Display (6)
Place of Worship (8)
Public Utility (15,18)
Recreation Use (1)
Renewable Energy (17)
Retail Store (5)
Secondary Suite (19)

Take-out Eating Establishment (2)
Transportation Use (16)
Vehicle Fuel Station (3,12)
Vehicle Service Shop (3,13)
[By-law: 545-2019] [By-law: 1153-2023]

30.20.20.100 Conditions

(1) Recreation Use

In the CL zone, all **recreation uses** must be within a wholly enclosed **building**.

(2) Eating Establishment or Take-out Eating Establishment

In the CL zone:

- (A) the permitted maximum **interior floor area** on a **lot** for all **eating establishments** and **take-out eating establishments** is 400 square metres; and
- (B) the calculation of total **interior floor area** may be reduced by the area in the **building** used for:
 - (i) the same **building** areas as provided for in the calculation of **gross floor area** for a **non-residential building** in regulation 30.5.40.40(1); and
 - (ii) the areas used for associated offices, storage rooms, and staff rooms located in the **basement** or on a different **storey** than the **eating establishment** or **take-out eating establishment**.

(3) Vehicle Fuel Station or Vehicle Service Shop Location

In the CL zone, a **vehicle fuel station** and **vehicle service shop** must be on a **lot** that abuts a major **street** on the Policy Areas Overlay Map.

(4) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(5) Retail Store- Eating Space

In the CL zone, a **retail store** may have a maximum of 10.0 square metres used for the consumption of food or beverage by patrons.

(6) Outdoor Sales or Displays

In the CL zone, the outdoor sale or display of goods or commodities is subject to the following:

- (A) it must be combined with another permitted use;
- (B) goods or commodities may be displayed no closer to a **side lot line** or a **rear lot line** than the greater of:
 - (i) 3.0 metres; or
 - (ii) the required minimum **building setback** for the yard in which the goods or commodities are located;
- (C) the cumulative area for the outdoor sale or display of goods or commodities may be no more than 30.0 square metres; and
- (D) the area for the outdoor sale or display of goods or commodities may not be located in areas required by this By-law for parking, loading, **driveways** or **landscaping**.

(7) Day Nursery

In the CL zone, a **day nursery** must comply with the specific use regulations in Section 150.45.

(8) Place of Worship

In the CL zone, a **place of worship** must comply with the specific use regulations in Section 150.50.

(10) Eating Establishment

In the CL zone, an **eating establishment** must comply with the specific use regulations in Section 150.100.

(11) (THIS DOES NOT CURRENTLY CONTAIN A REGULATION)

(12) Vehicle Fuel Station

In the CL zone, a **vehicle fuel station** must comply with the specific use regulations in Section 150.92.

(13) Vehicle Service Shop

In the CL zone, a **vehicle service shop** must comply with the specific use regulations in Section 150.94.

(14) Automated Banking Machine

In the CL zone, an **automated banking machine** must be in a **building**.

(15) Public Utility

In the CL zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(16) Transportation Use

A **building** or **structure** on a **lot** in the CL zone and used as a **transportation use** must comply with all the requirements for a **building** on that **lot**.

(17) Renewable Energy Production or Cogeneration Energy Production

In the CL zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(18) Public Utility

In the CL zone, a **public utility**, must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the CL zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(19) Secondary Suite

In the CL zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(20) Outdoor Patio

In the CL zone:

- (A) an **outdoor patio** must be combined with one of the following uses and be located on the same **lot** or an abutting **lot** that permits an **outdoor patio**:
 - (i) **Eating Establishment**;
 - (ii) **Recreation use**;
 - (iii) **Retail Store**; and
 - (iv) **Take-out Eating Establishment**.
- (B) the permitted maximum area of an **outdoor patio** is the greater of:
 - (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the premises it is combined with.
- (C) an **outdoor patio** may not be used to provide entertainment such as performances, music and dancing;
- (D) an **outdoor patio** must be set back at least 10.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (E) an **outdoor patio** is not permitted in a **rear yard** or **side yard** which abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (F) an **outdoor patio** is not permitted above the first **storey** of a **building**. [By-law: 1153-2023]

30.20.30 Lot Requirements

30.20.30.1 General

(1) Commercial Development Parcel- Compliance in its Entirety

In the CL zone, if two or more **lots** are developed together, the regulations of this By-law apply respectively to the parts of the **lot** within the CL zone.

30.20.30.20 Lot Frontage

(1) Minimum Lot Frontage for Lots in a CL zone

In the CL zone, the required minimum **lot frontage** is 9.0 metres.

30.20.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the CL zone, if the **lawful lot frontage** of a **lawfully existing lot** is less than the required minimum **lot frontage** in this By-law, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 30.20.30.21(1) must comply with all other regulations or be authorized by a Section 45 Planning Act minor variance.

30.20.30.40 Lot Coverage

(1) Maximum Lot Coverage

If a **lot** in the CL zone is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**.

30.20.30.41 Lot Coverage Exemptions

(1) Permitted Lot Coverage for Lawfully Existing Buildings

In the CL zone, if the area of a **lot lawfully** covered by **lawfully existing buildings** or **structures** is greater than the permitted maximum **lot coverage**, the **lawful** percentage of the **lot** covered by those **lawfully existing buildings** or **structures** is the maximum **lot coverage** for those **lawfully existing buildings** or **structures** on that **lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to **lawfully existing buildings** or **structures** referred to in regulation 30.20.30.41(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

30.20.40 Principal Building Requirements

30.20.40.1 General

(1) Use in Wholly Enclosed Building Condition

In the CL zone, all uses must be located within a wholly enclosed **building**, except for outdoor sales and display, **park**, **parking spaces**, and **loading spaces**.

30.20.40.10 Height

(1) Maximum Height

In the CL zone, the permitted maximum height of a **building** or **structure** on a **lot** is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) 10.0 metres, where there is no numerical value following the letters "HT" on the Height Overlay Map.

(2) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the CL zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map; and
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation. [By-law: 1353-2015]

30.20.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the CL zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings - Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 30.20.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

30.20.40.40 Floor Area

(1) Floor Space Index

In the CL zone, the number following the zone symbol on the zone label on the Zoning By-law Map is the total permitted maximum floor space index on the **lot**.

30.20.40.60 Permitted Encroachments

(1) Permitted Encroachments - Decks, Porches, and Balconies

In the CL zone, a platform with no **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or less than 0.3 metres from a **building**, is subject to the following:

- (A) in a **rear yard**, a platform with a floor no higher than the first **storey** of the **building** may encroach into the required **rear yard setback** the lesser of 2.5 metres or 50% of the required **rear yard setback**, if it is no closer to a **side lot line** than the greater of:
 - (i) 0.3 metres; or
 - (ii) a distance equal to the vertical distance between the highest part of the floor of the platform and the average elevation of the ground at the applicable side of the platform;
- (B) in a **rear yard**, a platform with a floor that is higher than the first **storey** of the **building** may encroach into the required minimum **rear yard setback** the lesser of 2.5 metres or 50% of the required minimum **rear yard setback**, if it is no closer to a **side lot line** than a distance equal to:
 - (i) the required minimum **side yard setback**; plus
 - (ii) the vertical distance between the **first floor** of the **building** and the average elevation of the ground along the building's rear **main wall**; and
- (C) in a **side yard**, a platform with a floor no higher than the first **storey** of the **building** may encroach into the required minimum **side yard setback** a maximum of 1.5 metres, if it is at least 0.3 metres from the **side lot line**; and
- (D) in a **side yard**, a platform with a floor that is higher than the first **storey** of the **building** may encroach into the required minimum **side yard setback** a maximum of 1.5 metres if the **side yard** abuts a **street**, but may not encroach into a required minimum **side yard setback** if the **side yard** does not abut a **street**.

(2) Permitted Encroachments - Canopies and Awnings

In the CL zone, a canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with the requirements of regulation 30.20.40.60(1), is subject to the following:

- (A) if it is above a platform which complies with the requirements of regulation 30.20.40.60(1), the roof, canopy, awning or similar **structure** may encroach into the required minimum **building setback** to the same extent as the platform it is above; and
- (B) if it is not above a platform, the canopy, awning or similar **structure** may encroach into a required minimum **building setback**:
 - (i) in a **front yard** or a **rear yard**, the lesser of 2.5 metres or 50% of the required minimum **front yard setback**, if it is no closer to a **side lot line** than the required **side yard setback**;
 - (ii) in a **side yard** that does not abut a **street**, a maximum of 1.5 metres, if it is at least 0.3 metres from the **side lot lines**; and
 - (iii) in a **front yard** or **side yard** that abuts a **street**, subject to compliance with regulation 30.5.40.60(1).

(3) Permitted Encroachments - Exterior Stairs, Access Ramp and Elevating Device

In the CL zone:

- (A) exterior stairs providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the stairs:
 - (i) are no longer than 1.5 horizontal units for each 1.0 vertical unit above-ground at the point where the stairs meet the **building** or **structure**;
 - (ii) are no wider than 2.0 metres; and
 - (iii) are at least 0.3 metres from all **lot lines**; and
- (B) an uncovered ramp providing pedestrian access to a **building** or **structure** may encroach into a required minimum **building setback**, if the ramp:
 - (i) is no longer than 15 horizontal units for each 1.0 vertical unit above the ground at the point where the ramp meets the **building** or **structure**;
 - (ii) is no wider than 1.5 metres for each sloped ramp segment; and
 - (iii) is no closer to a **lot line** than 0.3 metres; and
- (C) an elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if that the elevating device:
 - (i) elevates no higher than the **first floor** of the **building**;
 - (ii) has a maximum area of 3.0 square metres; and
 - (iii) is no closer to a **lot line** than 0.3 metres.

(4) Permitted Encroachments - Exterior Main Wall Surface

In the CL zone, cladding added to the original exterior surface of the **main wall** of a **building**, may encroach into a required minimum **building setback** a maximum of 0.15 metres, if the **building** is at least 5 years old.

(5) Permitted Encroachments - Architectural Features

In the CL zone, the following applies:

- (A) a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature on a **building** may encroach into a required minimum **building setback** a maximum of 0.6 metres, if it is at least 0.3 metres from all **lot lines**;
- (B) a chimney breast, on a **building**, may encroach into a required minimum **building setback** a maximum of 0.6 metres, if it:
 - (i) is no wider than 2.0 metres; and
 - (ii) is at least 0.3 metres from all **lot lines**.

(6) Permitted Encroachments - Window Projections

In the CL zone, a bay window, box window, or other window projection from a **main wall** of a **building**, which increases floor area or enclosed space and does not touch the ground, may encroach:

- (A) into a required minimum **front yard setback** or required minimum **rear yard setback** a maximum of 0.75 metres, if the window projections in total do not occupy more than 65% of the width of the **front wall** or rear **main wall** at each **storey**; and
- (B) into a required minimum **side yard setback** a maximum of 0.6 metres, if the window projections:
 - (i) in total do not occupy more than 30% of the width of the side **main wall** at each **storey**; and
 - (ii) are at least 0.6 metres from the **side lot line**.

(7) Permitted Encroachments - Roof Projections

In the CL zone, the eaves of the roof on a **building** may encroach into a required minimum **building setback** a maximum of 0.9 metres, if they are at least 0.3 metres from all **lot lines**.

(8) Permitted Encroachments - Equipment

On a **building** in the CL zone, the following wall mounted equipment may encroach into specified required minimum **building setbacks** as follows, if they are at least 0.3 metres from all **lot lines**:

- (A) an air conditioner may encroach into a required minimum **rear yard setback** or required minimum **side yard setback** a maximum of 0.9 metres, if it is not above the first **storey** of the **building** and in a **side yard**;
- (B) a satellite dish may encroach into a required minimum **building setback** a maximum of 0.9 metres;
- (C) an antennae or pole used to hold an antennae may encroach into a required minimum **rear yard setback** or required minimum **side yard setback** a maximum of 0.9 metres; and
- (D) a vent or pipe may encroach into a required minimum **rear yard setback** or required minimum **side yard setback** a maximum of 0.6 metres.

(9) Permitted Encroachments - Required Angular Planes

In the CL zone, encroachments are not permitted into an **angular plane** required by this By-law.

30.20.40.70 Setbacks

(1) Front Yard Setback Averaging

In the CL zone:

- (A) if a lot is beside one **lot** in the CL zone, and that abutting **lot** has a **building** fronting on the same **street** and that **building** is in whole or in part, 15.0 metres or less from the subject **lot**, the required minimum **front yard setback** is the **front yard setback** of that **building** on the abutting **lot**;
- (B) if a lot is between two abutting **lots** in the CL zone, each with a **building** fronting on the same **street** and those **buildings** are both in whole or in part, 15.0 metres or less from the subject **lot**, the required minimum **front yard setback** is the average of the **front yard setbacks** of those **buildings** on the abutting **lots**; and
- (C) in all other cases the required minimum **front yard setback** is 10.5 metres.

(2) Rear Yard Setback and Side Yard Setback

In the CL zone:

- (A) a **building** or **structure** must be set back:
 - (i) at least 7.5 metres from a **rear lot line**; or
 - (ii) where the **rear lot line** abuts a **lane**, at least 7.5 metres from the **lot line** of the **lot** abutting the **lane** on the opposite side of the **lane**;
- (B) where the **main wall** of a **building** does not have windows or openings, the **main wall** must be set back a minimum of 3.0 metres from a **side lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (C) where the **main wall** of a **building** has windows or openings, the **main wall** must be set back a minimum of 5.5 metres from a **side lot line** that is not adjacent to a **street** or **lane**.

(3) Rear Angular Plane

In the CL zone, if a **lot** abuts a **lot** in an O, ON or OR zone, or the Residential Zone category or Residential Apartment Zone category, or if a **lot** is separated from a **lot** in the O, ON or OR zone or the Residential Zone

category or Residential Apartment Zone category by a **lane**, no **building** or **structure** on the **lot** in the CL zone may penetrate a 45 degree **angular plane** projected, if there is no rear **lane**, from the ground at the **rear lot line**, or, if there is a rear **lane** abutting the **lot**, from a height above the **rear lot line** equal to the width of the **lane**. [By-law: 607-2015]

(4) Dormers

In the CL zone, a dormer projecting from the surface of the roof, may not have any wall of the dormer closer to a **lot line** than the required minimum **building setback**.

30.20.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the CL zone, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setbacks** from:

- (A) **front lot line**, the **lawful building setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) **rear lot line**, the **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or
- (C) a **side lot line**, the **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 30.20.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

(3) Required Rear Angular Plane for Lawfully Existing Buildings

In the CL zone, if a **lawfully existing building** or **structure** penetrates the rear **angular plane** required by regulation 30.20.40.70(3), that **lawfully existing building** or **structure** is exempt from regulation 30.20.40.70(3).

(4) Required Rear Angular Plane for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 30.20.40.71(3) must comply with the rear **angular plane** required by regulation 30.20.40.70(3) or be authorized by a Section 45 Planning Act minor variance.

30.20.40.80 Separation

(1) Separation

For a **lot** in the CL zone:

- (A) if a **main wall** of the **building** has windows and a line projected at a right angle from one of the **main walls** intercepts another **main wall** with windows on the same **lot**, the required minimum above-ground distance between the **main walls** is 11.0 metres; and
- (B) if a **main wall** of the **building** has windows facing another **main wall** on the same **lot** which does not have windows and a line projected at a right angle from one of the **main walls** intercepts the other **main wall**, the required minimum above-ground distance between them is 5.5 metres.

30.20.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the CL zone, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls** required by regulation 30.20.40.80(1), that **lawful** separation distance is the minimum separation distance for those **lawful main walls** of those **lawfully existing buildings**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** referred to in regulation 30.20.40.81(1) must comply with the required minimum separation distance between **main walls** required by regulation 30.20.40.80(1) or be authorized by a Section 45 Planning Act minor variance.

30.20.50 Yards

30.20.50.10 Landscaping

(1) Soft Landscaping Requirement if Abutting a Lot in a Residential Zone or a Residential Apartment Zone

If a **lot** in the CL zone abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, a minimum 1.5 metre wide strip of **soft landscaping** must be provided along the part of the **lot line** abutting the **lot** in the Residential Zone category or Residential Apartment Zone category.

(2) Fence Requirement if Abutting a Lot in a Residential Zone or a Residential Apartment Zone

In the CL zone, if a **lot** abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category a fence must be installed along the portion of a **lot line** abutting the **lot** in the Residential Zone category or Residential Apartment Zone category.

30.20.80 Parking

30.20.80.20 Setbacks

(1) Parking Space and Drive Aisle Location

In the CL zone, a **parking space** and a **drive aisle** may not be located in any required **front yard setback** or **side yard setback** that abuts a **street**.

(2) Parking Area Separation From Lot Line

In the CL zone, an area used for the parking or storage of **vehicles** must be separated from any **lot line** by a minimum 1.5 metre wide strip of **soft landscaping**.

(3) Parking Space to be Set Back from a Lot Line

A **parking space** that is not located in a **building** or **structure** must be set back a minimum of 0.5 metres from a **lot line**.

30.20.90 Loading

30.20.90.10 Location

(1) Loading Space Location

A **loading space** may not be located in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

30.20.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** does not comply with the **loading space** location requirements of regulation 30.20.90.10(1), that **lawful loading space** is exempt from the requirements of regulation 30.20.90.10(1).

30.20.90.40 Access to Loading Space

(1) Access to Loading Space - Restrictions

In the CL zone:

- (A) if a **lot** abuts a **lane**, **vehicle** access to a **loading space** must be from the **lane**; and
- (B) if a **corner lot** does not abut a **lane** and it has at least one **lot line** abutting a **street** that is not a major **street** on the Policy Areas Overlay Map, **vehicle** access to a **loading space** must be from the **street** which is not a major **street**.

(2) Loading Restrictions Adjacent to a Lot in a Residential Zone Category or Residential Apartment Zone Category

In the CL zone, where a **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, **vehicle** access to the **loading space** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category.

(3) Access Through a Main Wall to a Loading Space

A **loading space** in a **building** may not have its **vehicle** access through a **main wall** that faces a **street**.

30.20.90.41 Access to Loading Space Exemptions

(1) Access Through a Main Wall to a Loading Space Exemption

If a **lawfully existing building** has a **lawful loading space vehicle** access in a **main wall** that does not comply with the **loading space** location requirements of regulation 30.20.90.40(3), that **lawful loading space** is exempt from the requirements of regulation 30.20.90.40(3).

30.20.100 Access to Lot

30.20.100.10 Location

(1) Driveway Access to a Lot - Landscaping Area Exemption

In the CL zone, a **driveway** providing direct **vehicle** access from a **street** or **lane** may cross a required **landscaping** area.

(2) Parking Areas adjacent to a Lot in the Residential Zone Category or Residential Apartment Zone Category

In the CL zone, where a **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, **vehicle** access to a **parking space** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category.

30.20.150 Waste

30.20.150.1 General

(1) Waste and Recyclable Materials Storage

In the CL zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) if the waste and **recyclable material** is stored in an **ancillary building**, the **ancillary building**:
 - (i) may not be located in a **side yard** that abuts a **street** or in a **front yard**; and
 - (ii) must be located at least:
 - (a) 7.5 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and

(b) 1.0 metres from all other **side lot lines** and **rear lot lines**.